PROPERTY MANAGEMENT AGREEMENT

Upland Plaza | Salt Lake City, UT

Owner	Upland Plaza Owner LLC
Manager	Redwood Property Management
Property	Upland Plaza, 1514 Lakeview Avenue, Salt Lake City, UT 78986
Agreement Date	March 20, 2023

1. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

2. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Management Fee. Manager shall receive a monthly management fee equal to 5.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

5. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

6. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

7. Spending Authority. Manager may incur expenses not exceeding $298,000 individually without Owner approval, except in an emergency threatening life or property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

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8. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

9. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

10. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

12. Management Fee. Manager shall receive a monthly management fee equal to 7.1% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

13. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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15. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

16. Spending Authority. Manager may incur expenses not exceeding $142,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

17. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

18. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

19. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

20. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

21. Management Fee. Manager shall receive a monthly management fee equal to 4.6% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

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22. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

23. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

24. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

25. Spending Authority. Manager may incur expenses not exceeding $298,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

26. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

27. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

28. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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29. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

30. Management Fee. Manager shall receive a monthly management fee equal to 7.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

31. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

32. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

33. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

34. Spending Authority. Manager may incur expenses not exceeding $416,000 individually without Owner approval, except in an emergency threatening life or property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

35. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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36. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

37. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

38. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

39. Management Fee. Manager shall receive a monthly management fee equal to 3.2% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

40. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

41. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

42. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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43. Spending Authority. Manager may incur expenses not exceeding $228,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

44. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

45. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

46. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

47. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

48. Management Fee. Manager shall receive a monthly management fee equal to 4.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

49. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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50. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

51. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

52. Spending Authority. Manager may incur expenses not exceeding $468,000 individually without Owner approval, except in an emergency threatening life or property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

53. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

54. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

55. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

56. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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57. Management Fee. Manager shall receive a monthly management fee equal to 6.3% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

58. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

59. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

60. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

61. Spending Authority. Manager may incur expenses not exceeding $266,000 individually without Owner approval, except in an emergency threatening life or property. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

62. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

63. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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64. Appointment. Owner appoints Manager as the exclusive managing agent of Upland Plaza, and Manager accepts the appointment under the terms of this Agreement. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

65. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

66. Management Fee. Manager shall receive a monthly management fee equal to 3.6% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

67. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

68. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

69. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

70. Spending Authority. Manager may incur expenses not exceeding $68,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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71. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT.

72. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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79. Spending Authority. Manager may incur expenses not exceeding $237,000 individually without Owner approval, except in an emergency threatening life or property. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

80. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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85. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

86. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

87. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

88. Spending Authority. Manager may incur expenses not exceeding $43,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

89. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

90. Termination. Owner may terminate this Agreement immediately for cause or upon sale of the Property. Manager shall deliver all records within ten days of termination. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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92. Term. This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

93. Management Fee. Manager shall receive a monthly management fee equal to 4.7% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

94. Duties of Manager. Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

95. Operating Account. All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

96. Budgets and Reporting. Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

97. Spending Authority. Manager may incur expenses not exceeding $16,000 individually without Owner approval, except in an emergency threatening life or property. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

98. Insurance and Indemnity. Manager shall maintain workers' compensation, general liability and fidelity coverage and shall indemnify Owner against acts of gross negligence or willful misconduct. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of UT. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Upland Plaza Owner LLC

By: Samuel Evans Title: Authorized Signatory Date: 03/20/2023

_____

Lighthouse Financial Group

By: Megan Underwood Title: Managing Member Date: 03/20/2023

Exhibit A - Property

Upland Plaza, 1514 Lakeview Avenue, Salt Lake City, UT 78986. Parcel containing approximately 10.61 acres, together with all improvements thereon.

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